

HOUSE BILL No. 1148

DIGEST OF INTRODUCED BILL

Citations Affected: IC 3-7; IC 3-10-8-9; IC 3-11-8; IC 3-11.7.

Synopsis: Same day voter registration. Permits an individual to register at the polls by completing a voter registration form and by providing proof of residence. Specifies that an individual may comply with the proof of residence requirement only by providing a REAL ID driver's license or identification card that shows the name and residence address of the individual registering to vote. Requires the ballot of a voter who registers at the polls to be treated as a provisional ballot.

Effective: July 1, 2026.

Bartlett

January 5, 2026, read first time and referred to Committee on Elections and Apportionment.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1148

A BILL FOR AN ACT to amend the Indiana Code concerning elections.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 3-7-13-10.5 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 10.5. Notwithstanding section 10 of this chapter, an**
4 **individual may register on the day of a primary, general,**
5 **municipal, school district, or special election as provided in**
6 **IC 3-7-49.**

7 SECTION 2. IC 3-7-13-11 IS AMENDED TO READ AS
8 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) ~~A person~~ **An**
9 **individual** desiring to register or transfer a registration may do so at the
10 office of the circuit court clerk or board of registration through the
11 close of business on the twenty-ninth day before the election is
12 scheduled to occur.

13 **(b) An individual desiring to register may do so on the day of a**
14 **primary, general, municipal, school district, or special election as**
15 **provided in IC 3-7-49.**

16 SECTION 3. IC 3-7-36-14, AS AMENDED BY P.L.76-2014,
17 SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 14. (a) This section applies to a person described in subsection (b) who applies to register to vote during the period:

- (1) beginning on the seventh day before election day; and
- (2) ending at noon election day.

(b) An absent uniformed services voter who is absent from Indiana during the registration period applicable to the voter under this chapter and who otherwise would be entitled to register to vote under Indiana law may, upon returning to Indiana during the period described in subsection (a) following discharge from service or reassignment, register to vote by doing the following:

- (1) Showing either of the following to the county voter registration office:

(A) A discharge from service, dated not earlier than the beginning of the registration period that ended on the eighth day before election day, of:

- (i) the voter;
- (ii) the voter's spouse; or
- (iii) the individual of whom the voter is a dependent.

(B) A copy of the government movement orders, with a reporting date not earlier than the beginning of the registration period that ended on the eighth day before election day, of:

- (i) the voter;
- (ii) the voter's spouse; or
- (iii) the individual of whom the voter is a dependent.

- (2) Completing a registration affidavit.

(c) **Except as provided in subsection (g)**, a voter who registers under this section may vote at the upcoming election only by absentee ballot at the office of the circuit court clerk at the time the voter registers under this section or at any time after the voter registers under this section and before noon on election day. A voter who wants to vote under this subsection must do both of the following:

- (1) Complete an application for an absentee ballot.
- (2) Sign an affidavit that the voter has not voted at any other precinct in the election.

The voter may vote at subsequent elections as otherwise provided in this title.

(d) If the voter votes by absentee ballot under this section, the circuit court clerk shall do the following:

- (1) Certify in writing that the voter registered under this section.
- (2) Attach the certification to the voter's absentee ballot envelope.

(e) If the county has a board of registration, the board of registration shall promptly deliver the voter's registration affidavit to the circuit



1 court clerk to permit the voter to vote under subsection (c).

2 (f) If the voter chooses not to vote under subsection (c), the county
3 voter registration office shall register the voter on the first day of the
4 next registration period.

5 **(g) An individual described in subsection (b) may register and**
6 **vote on the day of a primary, general, municipal, school district, or**
7 **special election as provided in IC 3-7-49.**

8 SECTION 4. IC 3-7-48-1, AS AMENDED BY P.L.271-2013,
9 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
10 JULY 1, 2026]: Sec. 1. (a) Except as otherwise provided by NVRA or
11 in this chapter, a person whose name does not appear on the
12 registration record may not vote, unless:

13 **(1) the county voter registration office issues a signed certificate**
14 **of error immediately available for inspection in the county voter**
15 **registration office showing that the voter is legally registered in**
16 **the precinct where the voter resides; or**

17 **(2) the voter has registered as provided in IC 3-7-49.**

18 (b) A person whose name does not appear on the registration record
19 may cast a provisional ballot as provided in IC 3-11.7.

20 SECTION 5. IC 3-7-49 IS ADDED TO THE INDIANA CODE AS
21 A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY
22 1, 2026]:

23 **Chapter 49. Election Day Registration**

24 **Sec. 1. (a) An individual who is not registered to vote but is**
25 **otherwise qualified to vote shall be allowed to vote at the polls in a**
26 **primary, general, municipal, school district, or special election if**
27 **the individual registers at the polls under this chapter.**

28 **(b) To register to vote at the polls under this chapter, an**
29 **individual:**

30 **(1) must be a resident of the precinct;**

31 **(2) must be otherwise legally qualified to vote under**
32 **IC 3-7-13-1;**

33 **(3) may not be registered to vote under IC 3-7-14 through**
34 **IC 3-7-22;**

35 **(4) may not be qualified to vote under IC 3-7-39-7,**
36 **IC 3-7-39-8, IC 3-7-48, IC 3-10-10, IC 3-10-11, or IC 3-10-12;**
37 **and**

38 **(5) may not have already voted in the election.**

39 **(c) An individual who wishes to register to vote under this**
40 **chapter must do the following:**

41 **(1) Complete a voter registration form prescribed by**
42 **IC 3-7-18.**



(2) Provide acceptable proof of residence.

Sec. 2. (a) An individual may comply with the proof of residence requirement under section 1(c) of this chapter only by providing a REAL ID driver's license or identification card (as defined in 6 CFR 37.3) that shows the name and residence address of the individual registering to vote.

(b) If an individual presents a document under subsection (a), the poll clerk shall add a notation to the poll list indicating the type of document presented by the individual. The election division shall prescribe a standardized coding system to classify documents presented under subsection (a) for entry into the county voter registration system.

(c) If an individual is unable to present the documentation required under subsection (a) to the poll clerk while present at the polls, the poll clerk shall notify the precinct election board.

(d) The precinct election board shall advise an individual described in subsection (c) that the individual must file a copy of the documentation required under subsection (a) with:

(1) the county voter registration office; or

(2) the precinct election board in the voter's precinct;

to permit the individual's provisional ballot to be counted under IC 3-11.7.

Sec. 3. An individual who registers to vote under this chapter:

(1) may not be challenged on the grounds that the individual's registration does not appear in the precinct registration book or poll list; and

(2) is not required to obtain a certificate of error under IC 3-7-48 to vote.

Sec. 4. Before each primary, general, municipal, school district, or special election, the county election board shall provide each precinct election board with a sufficient number of registration forms to meet the reasonable need for the forms under this chapter.

Sec. 5. The precinct election board shall attach the completed registration forms to the poll list for processing by the county voter registration office under IC 3-10-1-31.1.

Sec. 6. (a) The precinct election board shall add to the poll list of the precinct the name and address of an individual who registers to vote under this chapter.

(b) The county voter registration office shall add to the registration record of the county the name of an individual who registers to vote under this chapter.



1 **Sec. 7. The county voter registration office shall process under**
 2 **IC 3-7-33-5 the voter registration forms completed under section**
 3 **1 of this chapter.**

4 **Sec. 8. If a notice mailed under IC 3-7-33-5 to an individual who**
 5 **registered under this chapter is returned as undeliverable, the**
 6 **county voter registration office shall initiate steps under**
 7 **IC 3-7-33-6 to remove the individual from the registration rolls.**

8 **Sec. 9. A registration completed under this chapter for which**
 9 **the notice mailed under IC 3-7-33-5 is not returned is effective to**
 10 **the same extent as if the registration had been completed under**
 11 **IC 3-7-14 through IC 3-7-22.**

12 **Sec. 10. An individual who registers to vote under this chapter**
 13 **shall be given a provisional ballot to vote at the election if the**
 14 **individual wishes to vote at that election.**

15 SECTION 6. IC 3-10-8-9, AS AMENDED BY P.L.10-2010,
 16 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 17 JULY 1, 2026]: Sec. 9. (a) If the special election occurs during the
 18 period when registration is open under IC 3-7-13, the registration
 19 period continues through the twenty-ninth day before the special
 20 election occurs and resumes on the date specified by IC 3-7-13-10(d),
 21 **except that an individual may register on the day of a special**
 22 **election as provided in IC 3-7-49.**

23 (b) The election board conducting the special election shall provide
 24 poll lists for use at the precincts that include the names of voters in the
 25 precinct who:

- 26 (1) have registered through the twenty-ninth day before the
- 27 special election is to be conducted; or
- 28 (2) are absent uniformed services voters or overseas voters
- 29 registered under IC 3-7-36.

30 (c) This subsection applies when a special election is ordered by a
 31 court under IC 3-12-8-17 or the state recount commission under
 32 IC 3-12-11-18. A candidate may not be placed on the special election
 33 ballot unless the candidate was on the ballot or was a declared write-in
 34 candidate for the office at the general election preceding the special
 35 election.

36 SECTION 7. IC 3-11-8-15, AS AMENDED BY P.L.153-2024,
 37 SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 38 JULY 1, 2026]: Sec. 15. (a) Only the following persons are permitted
 39 in the polls during an election:

- 40 (1) Members of a precinct election board.
- 41 (2) Poll clerks and assistant poll clerks.
- 42 (3) Election sheriffs.



(4) Deputy election commissioners.

(5) Pollbook holders and challengers.

(6) Watchers.

(7) Voters for the purposes of:

(A) voting; or

(B) registering to vote on election day under IC 3-7-49, or filing a copy of the documentation required by IC 3-7-49-2 with the precinct election board in the voter's precinct so that the voter's provisional ballot may be counted under IC 3-11.7.

(8) Minor children accompanying voters as provided under IC 3-11-11-8.

(9) An assistant to a precinct election officer appointed under IC 3-6-6-39.

(10) An individual authorized to assist a voter in accordance with IC 3-11-9.

(11) A member of a county election board, acting on behalf of the board.

(12) A technician authorized to act on behalf of a county election board to repair a voting system (if the technician bears credentials signed by each member of the board).

(13) Either of the following who have been issued credentials signed by the members of the county election board:

(A) The county chairman of a political party.

(B) The county vice chairman of a political party.

However, a county chairman or a county vice chairman who is a candidate for nomination or election to office at the election may not enter the polls under this subdivision.

(14) The secretary of state, as chief election officer of the state, unless the individual serving as secretary of state is a candidate for nomination or election to an office at the election.

(15) A person credentialed by the Indiana protection and advocacy services commission to conduct activities for the protection and advocacy for voting access program provided under 52 U.S.C. 21061.

(b) Except for an individual described in subsection (a)(8) or (a)(10), an individual must be a citizen of the United States to be permitted in the polls during an election.

(c) The secretary of state may exempt an individual from the requirement to be a United States citizen.

(d) This subsection applies to a simulated election for minors conducted with the authorization of the county election board. An



individual participating in the simulated election may be in the polls for the purpose of voting. A person supervising the simulated election may be in the polls to perform the supervision.

(e) The inspector of a precinct has authority over all simulated election activities conducted under subsection (d) and shall ensure that the simulated election activities do not interfere with the election conducted in that polling place.

(f) A person described in subsection (a)(15) must carry an identification card that clearly states the following:

(1) The name of the individual carrying the identification card.

(2) A statement that the person is credentialed by the Indiana protection and advocacy services commission to enter the polling location.

(3) A brief statement that the individual is conducting activities provided under federal law.

SECTION 8. IC 3-11-8-16, AS AMENDED BY P.L.186-2025, SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16. A person may not remain within a distance equal to the length of the chute (as defined in IC 3-5-2.1-21) of the entrance to the polls except for the purpose of:

(1) offering to vote; or

(2) registering to vote on election day under IC 3-7-49, or filing a copy of the documentation required by IC 3-7-49-2 with the precinct election board in the voter's precinct so that the voter's provisional ballot may be counted under IC 3-11.7.

SECTION 9. IC 3-11-8-25.1, AS AMENDED BY P.L.186-2025, SECTION 26, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 25.1. (a) Except as provided in subsection (e), a voter who desires to vote an official ballot at an election shall provide proof of identification.

(b) Except as provided in subsection (e), before the voter proceeds to vote in the election, a precinct election officer shall ask the voter to provide proof of identification. One (1) of each of the precinct election officers nominated by each county chairman of a major political party of the county under IC 3-6-6-8 or IC 3-6-6-9 is entitled to ask the voter to provide proof of identification. The voter shall produce the proof of identification to each precinct officer requesting the proof of identification before being permitted to sign the poll list.

(c) If:

(1) the voter is unable or declines to present the proof of identification; or

(2) a member of the precinct election board determines that the



proof of identification provided by the voter does not qualify as proof of identification under IC 3-5-2.1-84; a member of the precinct election board shall challenge the voter as prescribed by this chapter.

(d) If the voter executes a challenged voter's affidavit under section 22.1 of this chapter, the voter shall:

- (1) sign the poll list; and
- (2) receive a provisional ballot.

(e) A voter who votes in person at a precinct polling place, vote center, or satellite office established under IC 3-11-10-26.3 that is located at a state licensed care facility where the voter resides is not required to provide proof of identification before voting in an election.

(f) After a voter has passed the challengers or has been sworn in, the voter shall be instructed by a member of the precinct election board to proceed to the location where the poll clerks are stationed. In a vote center county using an electronic poll list, two (2) election officers who are not members of the same political party must be present when a voter signs in on the electronic poll list. The voter shall announce ~~the voter's name~~ to the poll clerks or assistant poll clerks **the voter's name and whether the voter wants to register to vote at the polls. If the voter wants to register and meets the conditions set forth in IC 3-7-49, the poll clerk or other precinct election officer shall register the voter in accordance with IC 3-7-49. If the voter is already registered,** a poll clerk, an assistant poll clerk, or a member of the precinct election board shall require the voter to write the following on the poll list or to provide the following information for entry into the electronic poll list:

- (1) The voter's name.
- (2) Except as provided in subsection (k), the voter's current residence address.

(g) The poll clerk, an assistant poll clerk, or a member of the precinct election board shall:

- (1) ask the voter to provide or update the voter's voter identification number;
- (2) tell the voter the number the voter may use as a voter identification number; and
- (3) explain to the voter that the voter is not required to provide or update a voter identification number at the polls.

(h) The poll clerk, an assistant poll clerk, or a member of the precinct election board shall ask the voter to provide proof of identification.

(i) In case of doubt concerning a voter's identity, the precinct



election board shall compare the voter's signature with the signature on the voter's registration record provided by the county voter registration office under IC 3-7-29. If the board determines that the voter's signature is authentic, the voter may then vote. If either poll clerk doubts the voter's identity following comparison of the signatures, the poll clerk shall challenge the voter in the manner prescribed by section 21 of this chapter.

(j) If:

(1) the poll clerk does not execute a challenger's affidavit; or

(2) the voter executes a challenged voter's affidavit under section 22.1 of this chapter or executed the affidavit before signing the poll list;

the voter may then vote.

(k) The electronic poll book (or each line on a poll list sheet provided to take a voter's current address) must include a box under the heading "Address Unchanged". A voter whose address is unchanged shall check the box instead of writing the voter's current address on the poll list, or if an electronic poll book is used, the poll clerk shall check the box after stating to the voter the address shown on the electronic poll book and receiving an oral affirmation from the voter that the voter's residence address shown on the poll list is the voter's current residence address instead of writing the voter's current residence address on the poll list or reentering the address in the electronic poll book.

(l) If the voter indicates that the voter's current residence is located within another county in Indiana, the voter is considered to have directed the county voter registration office of the county where the precinct is located to cancel the voter registration record within the county. The precinct election board shall provide the voter with a voter registration application for the voter to complete and file with the county voter registration office of the county where the voter's current residence address is located.

(m) If the voter indicates that the voter's current residence is located outside Indiana, the voter is considered to have directed the county voter registration office of the county where the precinct is located to cancel the voter registration record within the county.

SECTION 10. IC 3-11-8-25.5, AS AMENDED BY P.L.271-2013, SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 25.5. (a) If an individual signs the individual's name and either:

(1) signs the individual's address; or

(2) checks the "Address Unchanged" box;



on the poll list or provides the information for entry by the poll clerk into the electronic poll list under section 25.1 of this chapter and then leaves the polls without casting a ballot or after casting a provisional ballot, the voter may not be permitted to reenter the polls, ~~to cast a ballot at the election~~; except as provided by subsection (b).

(b) An individual who:

(1) registers to vote on election day under IC 3-7-49; and

(2) is unable to present the documentation required under IC 3-7-49-2;

is entitled to reenter the polls solely to file a copy of the documentation required under IC 3-7-49-2 with the precinct election board in the individual's precinct so that the individual's provisional ballot may be counted under IC 3-11.7.

SECTION 11. IC 3-11.7-2-1, AS AMENDED BY P.L.65-2024, SECTION 30, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) ~~As provided by 52 U.S.C. 21082~~; This section applies to the following individuals:

(1) An individual:

(A) whose name does not appear on the registration list; and

(B) who is challenged under IC 3-10-1 or IC 3-11-8 after the voter makes an oral or a written affirmation under IC 3-7-48-5 or IC 3-7-48-7 or after the voter produces a certificate of error under IC 3-7-48-1.

(2) An individual described by IC 3-10-1-10.5, IC 3-11-8-23.5, or IC 3-11-8-27.5 who is challenged as not eligible to vote.

(3) An individual who seeks to vote in an election as a result of a court order (or any other order) extending the time established for closing the polls under IC 3-11-8-8.

(4) An individual who is registering to vote at the polls under IC 3-7-49.

(b) ~~As required by 52 U.S.C. 21083~~; A voter who has registered to vote but has not:

(1) presented identification required under 52 U.S.C. 21083 to the poll clerk before voting in person under IC 3-11-8-25.1; or

(2) filed a copy of the identification required under 52 U.S.C. 21083 to the county voter registration office before the voter's absentee ballot is cast;

is entitled to vote a provisional ballot under this article.

(c) A voter who has registered to vote but has not:

(1) presented documentation required under IC 3-7-33-4.7 to the poll clerk before voting in person; or

(2) filed a copy of the identification required under IC 3-7-33-4.7



1 with the county voter registration office before the voter's
 2 absentee ballot is cast;
 3 is entitled to vote a provisional ballot under this article.

4 **(d) A voter who has registered to vote under IC 3-7-49 is**
 5 **entitled to vote a provisional ballot under this article.**

6 ~~(d)~~ (e) A precinct election officer shall inform an individual
 7 described by subsection (a)(1) or (a)(2) that the individual may cast a
 8 provisional ballot if the individual:

9 (1) is eligible to vote under IC 3-7-13-1;

10 (2) submitted a voter registration application during the
 11 registration period described by IC 3-7-13-10; and

12 (3) executes an affidavit described in IC 3-10-1-9 or IC 3-11-8-23.

13 ~~(e)~~ (f) A precinct election officer shall inform an individual
 14 described by subsection (a)(3) **or (a)(4)** that the individual may cast a
 15 provisional ballot.

16 SECTION 12. IC 3-11.7-5-2, AS AMENDED BY P.L.65-2024,
 17 SECTION 32, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 18 JULY 1, 2026]: Sec. 2. (a) Except as provided in section 5 of this
 19 chapter, if the county election board determines that all the following
 20 apply, a provisional ballot is valid and shall be counted under this
 21 chapter:

22 (1) The affidavit executed by the provisional voter under
 23 IC 3-11.7-2-1 is properly executed.

24 (2) The provisional voter is a qualified voter of the precinct and
 25 has provided proof of identification, if required, under IC 3-10-1,
 26 IC 3-11-8, or IC 3-11-10-26.

27 (3) Based on all the information available to the county election
 28 board, including:

29 (A) information provided by the provisional voter;

30 (B) information contained in the county's voter registration
 31 records; and

32 (C) information contained in the statewide voter registration
 33 file;

34 the provisional voter registered to vote at a registration agency
 35 under this article on a date within the registration period.

36 (b) If the provisional voter has provided information regarding the
 37 registration agency where the provisional voter registered to vote, the
 38 board shall promptly make an inquiry to the agency regarding the
 39 alleged registration. The agency shall respond to the board not later
 40 than noon of the first Friday after the election, indicating whether the
 41 agency's records contain any information regarding the registration. If
 42 the agency does not respond to the board's inquiry, or if the agency



1 responds that the agency has no record of the alleged registration, the
 2 board shall reject the provisional ballot. The board shall endorse the
 3 ballot with the word "Rejected" and document on the ballot the inquiry
 4 and response, if any, by the agency.

5 (c) Except as provided in section 5 of this chapter, a provisional
 6 ballot cast by a voter described in IC 3-11.7-2-1(b) is valid and shall be
 7 counted if the county election board determines under this article that
 8 the voter filed the documentation required under IC 3-7-33-4.5 and 52
 9 U.S.C. 21083 with the county voter registration office not later than the
 10 closing of the polls on election day.

11 (d) Except as provided in section 5 of this chapter, a provisional
 12 ballot cast by a voter described in IC 3-11.7-2-1(c) is valid and shall be
 13 counted if the county election board determines under this article that
 14 the voter filed the documentation required under IC 3-7-33-4.7 with the
 15 county voter registration office not later than the closing of the polls on
 16 election day.

17 **(e) Except as provided in section 5 of this chapter, a provisional**
 18 **ballot cast by a provisional voter described in IC 3-11.7-2-1(d) is**
 19 **valid and shall be counted if the county election board determines**
 20 **the following:**

21 **(1) The provisional voter completed a voter registration form**
 22 **under IC 3-7-49-1(c).**

23 **(2) The notice mailed under IC 3-7-33-5 to the provisional**
 24 **voter has not been returned as undeliverable.**

25 **(3) The provisional voter is a qualified voter of the precinct.**

26 **(4) The provisional voter has done all of the following not**
 27 **later than the closing of the polls on election day:**

28 **(A) Provided proof of residence acceptable under IC 3-7-49**
 29 **to the:**

30 **(i) poll clerk;**

31 **(ii) county voter registration office; or**

32 **(iii) precinct election board in the voter's precinct.**

33 **(B) If required, provided:**

34 **(i) proof of identification under IC 3-10-1, IC 3-11-8, or**
 35 **IC 3-11-10-26; or**

36 **(ii) proof of identification and properly executed an**
 37 **affidavit under section 2.5 of this chapter.**

38 SECTION 13. IC 3-11.7-5-3, AS AMENDED BY P.L.103-2005,
 39 SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 40 JULY 1, 2026]: Sec. 3. (a) If the board determines that the affidavit
 41 executed by the provisional voter has not been properly executed, that
 42 the provisional voter is not a qualified voter of the precinct, that the



1 voter failed to provide proof of identification when required under
2 IC 3-10-1, IC 3-11-8, or IC 3-11-10-26, ~~or~~ that the provisional voter did
3 not register to vote at a registration agency under this article on a date
4 within the registration period, **or that the provisional voter failed to**
5 **comply with the requirements under IC 3-7-49**, the board shall make
6 the following findings:

7 (1) The provisional ballot is invalid.

8 (2) The provisional ballot may not be counted.

9 (3) The provisional ballot envelope containing the ballots cast by
10 the provisional voter may not be opened.

11 (b) If the county election board determines that a provisional ballot
12 is invalid, a notation shall be made on the provisional ballot envelope:
13 "Provisional ballot determined invalid".

